

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979 read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

Court of Appeal Case No.
CA/HCC/0001/2026
High Court of Colombo
Case No. HC/5148/2024

Sawwamanage Nishantha

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.**
R. P. Hettiarachchi, J.

COUNSEL : **Priyantha Nawana, PC with Dinali Silva
and Ravihanse Wijisinghe for the
Appellant.**
: **Wasantha Perera, DSG for the
Respondent.**

ARGUED ON : **30/06/2026**

DECIDED ON : **14/09/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Appellant was indicted by the Attorney General under Section 364(1) of the Penal Code for committing one count of the offence of Rape and one count of Robbery under Section 380 of Penal Code on Dunuvila Vidanayalage Don Chandra Beatrice on 20.11.2010.

After the service of the indictment to the Appellant, when the case was fixed for the pre-trial conference, the learned Counsel for the Appellant informed the Court that his client is considering to tender an unqualified plea of guilty. Hence, the pre-trial conference was postponed.

When the case was called on 03.09.2025, the Appellant had pleaded guilty to the charges. After considering the aggravating and mitigating submissions, the Learned High Court Judge has sentenced the Appellant as follows:

For the 1st Count the Appellant was sentenced to 20 years rigorous imprisonment with a fine of Rs.20, 000/- .This carries the default sentence of 01-year rigorous imprisonment.

For the 2nd Count the Appellant was sentenced to 10 years rigorous imprisonment with a fine of Rs.10,000/-. This carries a default sentence of 06 months rigorous imprisonment.

Before the plea could take place, the Court summoned PW1 and led her evidence to establish whether she had received the gold jewelleries which had been robbed from her by the Appellant and to also inquire from her whether she expects any compensation from the Appellant. Answering to the Court, the victim refused to accept any compensation from the Appellant. Accordingly, no compensation was ordered by the Court. Further, the Learned High Court Judge had ordered the sentences imposed on count number one and two to run consecutively.

Being aggrieved by the aforesaid sentences, the Appellant preferred this appeal to this Court.

The Learned Counsel for the Appellant informed this court that the Appellant has given his consent to argue this matter in his absence. At the hearing, the Appellant was connected via the Zoom platform from prison.

The Facts of this case which has been revealed at the sentencing submissions *albeit* briefly are as follows.

According to PW1 - the victim of this case, she had been about 62 years old when she faced this bitter ordeal. When she appeared before the High Court, she was 76 years old.

The incident had taken place a few days after she had returned to Sri Lanka after being employed overseas. On the day of the incident, at about 3.00am while she was sleeping, the Appellant who was also a resident of the area, had entered the house of the victim and raped the victim disregarding her age. After committing this act of rape, the Appellant had robbed her jewellery which she was wearing at that time. The learned Deputy Solicitor General added that when the Appellant committed these offences, he had uttered that it was his job.

Further, in the sentencing submission, the learned State Counsel submitted that as per the Previous Conviction Report dated 06.02.2025 issued by the Sri Lanka Police, the Appellant had 25 previous convictions for similar offences and had served a jail sentence prior to him committing the offences in this case.

In the mitigating submission, the learned Counsel for the Appellant submitted that the Appellant was 29 years when he committed the offences pertaining to this case. He had served a 20-year jail sentence before committing these offences. The Learned Counsel contended that the Appellant is now 45 years old, while also being the sole breadwinner of the family. He is the father of three children aged 20, 16 and 11 years. The learned Counsel requested the Court to impose a lenient sentence considering the early plea of guilty tendered, along with the above-mentioned mitigating circumstances, without wasting the time of the Court.

The Learned High Court Judge in his sentencing order had considered all the aggravating and mitigating circumstances adduced by both parties.

After the conviction of an Accused person, the discretion in imposing the relevant sentence would lie with that particular Court, while being guided by a number of factors, such as the circumstances under which the offence was committed by the Accused. Where such specific sentencing guidelines would

not be available, it would be necessary to discuss the principles that must be followed when imposing sentences.

In the case of **The Attorney General v H.N.de Silva** 57 NLR 121 Per BASNAYAKE, A.C.J.-

" A Judge should, in determining the proper sentence, first consider the gravity of the offence as it appears from the nature of the act itself and should have regard to the punishment provided in the Penal Code or other statute under which the offender is charged. He should also regard the effect of the punishment as a deterrent and consider to what extent it will be effective. If the offender held a position of trust or belonged to a service which enjoys the public confidence that must be taken into account in assessing the punishment. The incidence of crimes of the nature of which the offender has been found to be guilty and the difficulty of detection are also matters which should receive due consideration. The reformation of the criminal, though no doubt an important consideration, is subordinate to the others I have mentioned. Where the public interest or the welfare of the State (which are synonymous) outweighs the previous good character, antecedents and age of the offender, public interest must prevail. "

In the case of **Don Percy Nanayakkara v The Republic of Sri Lanka** [1993] 1 SLR 71 the Court held that:

"In assessing punishment, the Court has to consider the matter from the point of both the offender and the public. The accused had held high public office and exercised extensive statutory power in conducting public examinations in this country. These examinations have to be conducted fairly and the results declared accurately. Thousands of students who face public examinations, every year, should have complete confidence in the fairness and accuracy of every process of the examinations. The accused

has subverted the very basis of this confidence by his conduct in dishonestly showing favour to persons with whom he was acquainted. Therefore, public interest demands that he should be imposed a deterrent punishment.”

In the case of **Attorney General v. Mendis** [1995] 1 Sri L.R. 138 it was held:

“In our view once an accused is found guilty and convicted on his own plea, or after trial, the Trial Judge has a difficult function to perform. That is to decide what sentence is to be imposed on the accused who has been convicted. In doing so he has to consider the point of view of the accused on the one hand and the interest of society on the other. In doing so the Judge must necessarily consider the nature of the offence committed, the manner in which it has been committed the machinations and the manipulations resorted to by the accused to commit the offence, the effect of committing such a crime insofar as the institution or organisation in respect of which it has been committed, the persons who are affected by such crime, the ingenuity with which it has been committed and the involvement of others in committing the crime.”

The Learned President’s Counsel for the Appellant contended that the Learned High Court Judge had not given any consideration to the above-mentioned circumstances even though the Appellant had tendered unqualified guilty plea at the very outset of the trial, which has saved the valuable time of the Court. Further, the Learned President’s Counsel contends that the Appellant has repented for what he had done to the victim. Hence, he submitted that, taking into account the circumstances under which he had pleaded guilty to the charges, the Court ought to have considered the mitigating circumstances in his favour when passing the sentence.

The learned President's Counsel citing Archbold: Criminal Pleading, Evidence and Practice 20th Edition submitted that a 1/3 discount should have been given to the Appellant considering his early guilty plea.

It has been examined by J. F. Archbold in Archbold's Criminal Pleading, Evidence and Practice, 20th edition that:

“As a general principle, an offender who pleads guilty may expect some credit, in the form of a reduction in the sentence which would have been imposed if he had been convicted by the jury on a plea of not guilty.”

It has been further examined, in relation to the Sentencing Council's guideline, that:

“The maximum discount of a one third is to be reserved for those who indicate a guilty plea at the first hearing at which a plea or indication of plea is sought by the court...

The court added that this approach does not altogether remove the discretion of a judge to treat a case individually...”

In relation to the element of remorse it has been observed that:

“The guideline says that the remorse of the offender, or other factors, such as assistance given to the investigating or prosecuting authorities, will be taken into account at an earlier stage as mitigation.”

However, in this case as stated earlier, the Appellant has 25 previous convictions and a majority of such convictions are for committing theft in the night. Once he was indicted for committing rape and robbery in the High Court of Colombo under Case No. HC/3056/2021. He was sentenced to

seven years rigorous imprisonment along with a fine and compensation. Considering the Appellant's previous convictions report, he can very well be categorised as a habitual offender.

Such a habitual offender with a record of 25 previous convictions generally cannot be entitled to a lesser punishment. A long criminal record would act as an aggravating factor in many legal systems; such a record would essentially establish a pattern of the Appellant breaking the law. Accordingly, Judges would give harsher and longer sentences with the objective of stopping such crimes being repeated and to protect the public from such habitual offenders.

According to the Penal Code, the maximum sentence for committing Rape under Section 364(1) is 20 years. The maximum sentence for committing Robbery under Section 380 of Penal Code is 10 years. In this case the Learned High Court Judge had imposed a maximum sentence to the charges and had ordered the sentences to run consecutively. Thereby, he was sentenced to 30 years rigorous imprisonment.

The Learned High Court Judge had not deducted his pre-trial remand period of two years from the sentence.

Considering the submissions made on behalf of the Appellant and the prosecution, I consider imposing a sentence of 30 years is not appropriate in this case. Hence, I order the sentence imposed on count number one and count number two to run concurrent to each other. Hence, the Appellant has to serve 20 years rigorous imprisonment. As the Appellant had served 02 years in remand before he was released on bail for this case, I deduct the said 02 years from his 20-year sentence. Therefore, he now has to serve 18 years rigorous imprisonment in this case. The fine imposed on the first and second counts will remain the same.

Further, I order the 18 years rigorous imprisonment deemed to have commenced from the date of judgment i.e., from 10.09.2025.

The Appeal is dismissed subject to the above variation in the jail sentence.

The Registrar of this Court is directed to send this judgment to the High Court of Colombo along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL